

that in all civil suits pending, or that may thereafter be brought, either party, or his agent or attorney, may enter at the prothonotary's office, at any time after the entry of such suits or actions (excepting appeals to the register's court, or issues directed by the said court) a rule of reference, wherein the party shall state his determination to have arbitrators chosen, on a day certain, to be mentioned therein not exceeding thirty days thereafter, for the trial of all matters in variance between the parties; which rule shall be entered by the prothonotary, and certain proceedings pointed out in this act shall be had thereon.

1. The rule must be entered thirty days previous to the first day of the third term after the action brought.

2. When the commonwealth shall be a party, the attorney general or his deputy shall attend to the suit.

3. The §2 of the act prescribes the method of nominating arbitrators and choosing an umpire.

4. The arbitrators are to be resident in the proper county, and are not compellable to serve on more than ten trials in any one year.

5. The parties may fix the time and place of meeting, or if they should not agree upon it, the prothonotary shall fix it.

6. The party entering the rule shall serve it on each arbitrator under a certain penalty.

7. Where an arbitrator or arbitrators do not attend, the vacancy shall be supplied by the parties if they can agree, or if not by the other arbitrators.

8. The arbitrators shall be sworn, or affirmed. They shall have power to call on either party for books, papers and documents: To adjourn from time to time: Their award signed by them, or a majority of them, shall be transmitted to the prothonotary within 7 days;—who shall enter it on his docket; and from the time of such entry it shall have the effect of a judgment and operate as a lien upon real estate.

9. Either party dissatisfied may *appeal*, under the following restrictions—*viz.* 1. The appellant or his agent shall swear or affirm, that it is not for delay such appeal is entered, but because he firmly believes injustice hath been done to the appellant. 2. The appeal shall be entered as well as the recognizance of bail, with the prothonotary: or upon failure to make such entry, an execution, or such other process as may be necessary to carry the judgment into effect shall be issued. 3. A regulation in respect to the stay of execution is established. 4. No appeal is to be allowed until the appellant shall have paid the costs accrued; and on the trial of the appeal the appellant shall not be permitted to produce any books, papers or documents which he may have withheld from the arbitrators.

10. If the plaintiff be the appellant he shall by himself, his agent or attorney, with one or more sureties, be bound in a recognizance on condition that if he shall not recover, in the event of the suit, a sum greater or a judgment more favorable than the report of the

N